

Senate Amendment to
House File 2543

H-8281

1 Amend House File 2543, as passed by the House, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 135G.1, subsection 12, paragraph c,
5 Code 2026, is amended by striking the paragraph.

6 Sec. 2. Section 135G.3, Code 2026, is amended by adding the
7 following new subsection:

8 NEW SUBSECTION. 1A. Within twenty-four hours of a
9 resident's admission to a subacute care facility, the subacute
10 care facility shall develop an initial treatment plan with the
11 resident.

12 Sec. 3. NEW SECTION. 135G.3A Insurance authorization.

13 1. If a mental health professional submits an electronic
14 request through an internet portal designated by the department
15 of health and human services for prior authorization for
16 insurance coverage for an individual's subacute mental health
17 care service under chapter 249A or chapter 249N, the department
18 of health and human services or the managed care organization
19 responsible for administering the individual's medical
20 assistance shall provide a determination to the mental health
21 professional for the preauthorization request as follows:

22 a. Within forty-eight hours after the date of receipt of an
23 urgent preauthorization request.

24 b. Within five calendar days after the date of receipt of a
25 nonurgent preauthorization request.

26 c. Within ten calendar days after the date of receipt of a
27 nonurgent preauthorization request involving complex or unique
28 circumstances.

29 2. The director of health and human services shall adopt
30 rules pursuant to chapter 17A as necessary to administer this
31 section.

32 Sec. 4. NEW SECTION. 135H.9A Bed tracking system.

33 The department of health and human services shall establish
34 an electronic system to track the availability of beds at each
35 psychiatric medical institution for children.

1 Sec. 5. DEPARTMENTS OF INSPECTIONS, APPEALS, AND LICENSING
2 AND HEALTH AND HUMAN SERVICES — ADMINISTRATIVE RULE
3 REVIEW. The department of inspections, appeals, and licensing
4 and the department of health and human services shall do all
5 of the following:

6 1. Collaborate to review each department's administrative
7 rules adopted pursuant to section 135G.10 and eliminate any
8 rule the departments determine impedes any of the following
9 goals without providing an equal or greater benefit:

10 a. Establishment of new subacute mental health care
11 facilities and services.

12 b. Expansion of existing subacute mental health care
13 facilities and services.

14 c. Ease of access to subacute mental health care facilities
15 and services.

16 2. Modify the departments' respective rules so that the
17 requirements to employ an individual at a subacute mental
18 health care facility are less stringent than the requirements
19 for the same employment at a state mental health institute.

20 Sec. 6. DEPARTMENT OF HEALTH AND HUMAN SERVICES — SUBACUTE
21 MENTAL HEALTH CARE SERVICES.

22 1. a. The department of health and human services shall
23 review the state's capability to establish subacute mental
24 health care services, and additional psychiatric inpatient
25 services at the state mental health institute at Independence,
26 beginning on July 1, 2027.

27 b. At a minimum, the department's review shall assess
28 the operational costs, bed capacity, staffing capabilities,
29 necessary infrastructure improvements, and reasonable
30 implementation time frames.

31 c. The department's review shall investigate the
32 possibility of partnering with private operators to provide
33 subacute mental health care services at the state mental health
34 institute at Independence.

35 d. The department shall submit a report on the department's

1 findings to the chairpersons of the house of representatives
2 committee on health and human services, the senate committee
3 on health and human services, the house committee on
4 appropriations, and the senate committee on appropriations no
5 later than January 4, 2027.

6 2. Following the review under subsection 1, if the director
7 of health and human services determines on or after July
8 1, 2026, that the department can provide subacute mental
9 health care services at the state mental health institute at
10 Independence within the department's budget, the department
11 may provide such services until the general assembly directs
12 otherwise.

13 Sec. 7. EFFECTIVE DATE. This Act, being deemed of immediate
14 importance, takes effect upon enactment.>

15 2. Title page, by striking lines 1 through 8 and inserting
16 <An Act relating to subacute mental health care facilities and
17 services, and including effective date provisions.>